

the representation. (RJN, Exhs. 2-3; Complaint, Exh. E.) Plaintiff's elder abuse claim is based on the same insufficient fraud allegations.

A strong policy exists that a Plaintiff should be permitted to amend her complaint – especially an initial pleading - if there is any possibility that a defect can be cured. (*City of Torrance v. Southern California Edison Co.* (2021) 61 Cal.App.5th 1071, 1091.) Plaintiff shall file any first amended complaint consistent with this ruling within 10 days of the hearing. (Cal. Rules of Court, rule 3.1320(g).)

On its own motion the court **vacates** Plaintiff's Amended Motion for Leave to File First Amended Complaint currently calendared for October 14, 2026.

JASPER WILLIE ANDERSON v. HAMPTON INN VALLEJO, SAK HOSPITALITY, INC. Case No. FCS059565

**Motion for Leave to File First Amended Complaint.
Motion for Appointment of Discovery Referee**

TENTATIVE RULING:

Plaintiff's motion for leave to file a first-amended complaint as to SAK HOSPITALITY d/b/a HAMPTON INN is GRANTED conditioned upon the reopening of discovery deadlines and the currently scheduled trial being vacated and reset. Plaintiff's motion to add a new Defendant, GENE PRICE, is DENIED as the statute of limitations from the February 15, 2021, alleged incident has passed and the identity of GENE PRICE has been known or knowable to Plaintiff.

The first amended complaint shall be filed and served in 10 court days. Responsive pleadings are due per Code of Civil Procedure.

Defendant's motion for the appointment of a discovery referee at Plaintiff's expense is GRANTED. Plaintiff's alleged conduct during his original deposition is the sole cause of the need for a discovery referee, despite Plaintiff's counsel's best efforts to intervene. The court has observed similar behavior to that cited by Plaintiff's counsel.

The parties shall meet and confer regarding the identity of a discovery referee in the next 20 court days and Plaintiff's counsel shall make financial arrangements with the referee in the next 30 court days. If the parties are unable to agree on a discovery referee, in 21 court days submit two names each to the court, include rates, CV, available dates to monitor the continued deposition and notify the judicial assistant for Department 8 of the submission so that the court is informed that a decision is needed.

All future set dates are vacated and the matter is continued for trial setting to October 15, 2026 at 8:30. Updated CMCs shall be filed which shall confirm completion of Plaintiff's deposition and identify 3 mutually agreeable jury trial dates in 2027.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002